

MINISTRY OF EDUCATION AND TRAINING

MINISTRY OF JUSTICE

HA NOI LAW UNIVERSITY

INFORMATION ON NEW CONCLUSIONS OF THE THESISDissertation topic: **Industrial property rights to trademarks in e-commerce**Major: **Economic Law**Code: **9.38.01.07**Training institution: **Hanoi Law University****SUMMARIZING NEW CONCLUSIONS OF THE THESIS**

The thesis is a comprehensive research work on theoretical and legal issues of industrial property rights (IP) to trademarks in *Electronic commerce* (e-commerce), as well as analysis and evaluation of legal provisions, the reality of enforcing the legal provisions of industrial property rights to trademarks in Vietnam, *making comparisons with certain nations across the globe. On the basis of inheriting the results of previous researches related to the topic, the thesis has new contributions in terms of scientific aspects as follows:*

Firstly, the thesis has systematically analyzed the theoretical issues of industrial property rights for trademarks in e-commerce, specifically:

- Clarifying theoretical aspects including concepts and contents of industrial property rights to trademarks in e-commerce
- Clarifying the peculiarities of industrial property rights to trademarks in e-commerce
- Analyzing theoretical issues as regard to legal aspects of industrial property rights to trademarks in e-commerce

Secondly, the thesis has deeply analyzed and comprehensively evaluated the provisions of Vietnamese law, making comparisons to some provisions of international law. Thereby, the thesis identified some "legal gaps" in these regulations.

Thirdly, the thesis has analyzed, evaluated the reality of enforcing the legal provisions of industrial property rights to trademarks in Vietnam, pointing out the problems and its causes.

Fourthly, on the basis of “gaps” in the legal provisions, the identified problems in the reality of enforcing the legal provisions of industrial property rights to trademarks in Vietnam, making comparisons to other nations in the world, evaluating the compatibility level (compatibility rating). The thesis provides requirements and solutions to improve the legal system and the effectiveness of law enforcement of industrial property rights to trademarks in Vietnam.